Introduction to Business – MGT211
Short Notes By VU Nexus

Theme 14

Intellectual Property Rights and Other Key Issues

1. Overview of Intellectual Property (IP)

- **Definition**: IP refers to creations of the mind—such as inventions, designs, literary and artistic works, symbols, names, and images—protected by law.
- **Purpose**: Protects creators' and businesses' rights, encourages innovation, and safeguards brand identity.
- **Key Forms Covered**:
    1. **Trademark**
    2. **Copyright**
    3. **Patent**

2. Trademark

Definition: A recognizable sign, logo, word, phrase, design, or combination that distinguishes goods/services of one business from others.

Purpose:

- Protect brand identity.
- Prevent use of confusingly similar marks.

Legal Framework in Pakistan:

- **Law**: Trademarks Ordinance, 2001
- **Authority**: Intellectual Property Organization (IPO) Pakistan, Ministry of Commerce.

Types of Trademarks:

- Word marks (e.g., "Nestlé")
- Logos/symbols

- Slogans (e.g., "Just Do It")
- 3D marks (e.g., Coca-Cola bottle shape)
- Sound marks (emerging practice).

Registration Process:

1. Search existing marks (optional but recommended).
2. Apply to IPO Pakistan.
3. Examination by Registrar.
4. Publication in Trademarks Journal (2-month opposition period).
5. Registration certificate issued if no opposition or resolved opposition.

Validity:

- 10 years initially, renewable indefinitely for further 10-year terms.

3. Copyright

Definition: Legal protection for creators of original works of authorship—literary, artistic, musical, cinematic, and software works.

Purpose:

- Give creators exclusive rights to use, reproduce, and distribute their works for a set period.

Legal Framework in Pakistan:

- **Law**: Copyright Ordinance, 1962 (amended).
- **Authority**: Copyright Office, under IPO Pakistan.

Protected Works:

- Literary (books, articles).
- Artistic (paintings, sculptures).
- Cinematographic films.
- Musical works and sound recordings.
- Computer software (sometimes also under patent law).

Registration Process (optional but beneficial):

1. Submit application to Copyright Office.
2. Pay fees.
3. Registrar examination.
4. Certificate issued.

Protection Period:

- Literary, musical, artistic: lifetime of author + 50 years after death.
- Films, sound recordings: 50 years from publication date.

4. Patent

Definition: A legal right for inventors over a new, useful, and non-obvious invention—exclusive right to make, use, and sell for a set period.

Purpose:

- Encourage innovation through time-limited exclusivity.

Legal Framework in Pakistan:

- **Law**: Patents Ordinance, 2000.
- **Authority**: IPO Pakistan.

What Can Be Patented:

- New and useful products, processes, machines, compositions of matter.
- Software with technical application.

Exclusions:

- Scientific theories, mathematical methods.
- Treatment methods for humans/animals.
- Abstract ideas or mere discoveries.

Registration Process:

1. File application with specifications and claims.
2. Examination by Patent Office.

3. Address objections or modifications.
4. Grant of patent.

Validity:

- 20 years from filing date (annual renewal fees apply).

5. Institutional Support – IPO Pakistan

- **Established**: 2005, autonomous body under Cabinet Division.
- **Functions**: Administers trademarks, copyrights, patents; creates awareness; facilitates IP registration; implements laws.
- **Website**: https://ipo.gov.pk

6. Recent Developments

- Digitization of IP registration processes.
- Establishment of IP Tribunals for dispute resolution.
- Accession to Madrid Protocol (2021) for international trademark registration.
- Alignment with WIPO standards.

7. Conclusion

Understanding and effectively using trademarks, copyrights, and patents is crucial for protecting intellectual assets, promoting innovation, and enhancing competitiveness in both local and international markets. In Pakistan, IPO plays a central role in facilitating and regulating these rights.

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